# AI Policy and Young People: What Changed in 2025–2026

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Federal policy now promotes AI in schools but leaves most guardrails to the states, and California, Colorado, the EU, and South Korea have written the rules that reach students and minors. For a school district or youth-serving nonprofit, the 2027 questions are about student data, chatbots used with young people, and automated decisions about students, not about whether AI is allowed in the classroom.

## Federal: promote AI in schools, leave safeguards to the states

- Executive Order 14277 (April 2025) created a White House AI education task force and told the Department of Education to issue guidance on using grant funds for AI.
- The Department's July 2025 guidance allows grant funds for AI tutoring and advising. Its final grant priority (effective May 13, 2026) declined to add federal rules on privacy, parental consent, or bias testing, leaving them to state and local decisions.
- Executive Order 14365 (December 2025) and the March 2026 White House framework both leave state child-safety laws out of the proposed federal preemption. The framework also asks Congress to set age-assurance and parental-control rules for AI used by minors.

## Where the rules differ

| Rule | What it means for students and minors |
|---|---|
| **California:** AB 1159 | Bars K-12 ed-tech operators from using student data to train generative AI and limits sale, targeted ads, and profiling. Creates a private right of action. *Effective Jan 1, 2027.* |
| **California:** SB 1119, "Adam's Law" | Companion chatbots used by children need risk assessments, crisis protocols, parental controls, age assurance, and independent audits. Penalties reach $5,000 (negligent) or $15,000 (intentional) per affected child. Certain educational chatbots are excluded. *Effective Jan 1, 2027; most duties operative July 1, 2027.* |
| **Colorado:** SB 26-189 | Education is a covered consequential decision: notice before use, information within 30 days of an adverse outcome, and human review in some cases. The Attorney General enforces. *Applies to decisions from Jan 1, 2027.* |
| **EU:** AI Act Article 5(1)(f) and Annex III | Emotion recognition in schools is banned, except for medical or safety reasons. AI for admission, grading, level placement, or test monitoring is high-risk. *Ban in force since Feb 2, 2025; high-risk duties moved to Dec 2, 2027 by the Digital Omnibus.* |
| **South Korea:** AI Basic Act, Art. 2(4) | Evaluation of students in early childhood, elementary, and secondary education counts as high-impact AI. *In effect since Jan 22, 2026 (Cooley).* |

## Child safety: companion chatbots moved fastest

- California's SB 243 (in effect since January 1, 2026) requires AI reminders for minors, suicide and self-harm protocols, and annual reporting. Governor Newsom vetoed AB 1064 the same day, saying it could effectively ban minors from these products. SB 1119 followed in September 2026.
- A Common Sense Media and OpenAI ballot initiative on the same topic is not on the November 3, 2026 ballot.
- The FTC's study, not an enforcement action (September 11, 2025) ordered seven companies, including Alphabet, Meta, OpenAI, and Snap, to explain how they test chatbots and limit harm to children and teens.

## What to watch

- **December 2, 2026:** EU deadline for providers to put technical safeguards against AI-generated child sexual abuse material and non-consensual intimate imagery in place (Digital Omnibus).
- **2027:** California's AB 1159 (K-12) and SB 1119 take effect January 1, most SB 1119 duties become operative July 1, and Colorado's SB 26-189 applies from January 1.
- **December 2, 2027:** EU high-risk duties for education systems apply under the revised schedule.
- **Open:** Which Education Department grant competitions use the AI priority, and whether Congress acts on the March 2026 framework.

## What it means for a district or youth-serving nonprofit

- **Student data:** Ask vendors in writing whether student data trains AI. AB 1159 bars that for K-12 operators from January 1, 2027.
- **Chatbots:** Check whether tools used with young people are companion chatbots under SB 1119, and what crisis protocol the vendor runs.
- **Automated decisions:** Treat admission, placement, grading, and proctoring tools as the highest-risk use. The EU, Korea, and Colorado regulate them; the Education Department's grant priority adds no privacy, consent, or bias-testing duties.

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*Sources are linked in the text and were checked in October 2026. Where a law firm summary or press release is linked instead of the statute, the text was not reviewed. Policy analysis, not legal advice. Appendix: Global AI Policy and Regulatory Architecture (2025–2026), 31 pages, 68 sources.*